

Senate File 644

S-3155

1 Amend Senate File 644 as follows:

2 1. By striking everything after the enacting clause and
3 inserting:

4 <DIVISION I

5 FY 2025-2026 APPROPRIATIONS

6 Section 1. DEPARTMENT OF JUSTICE.

7 1. There is appropriated from the general fund of the state
8 to the department of justice for the fiscal year beginning July
9 1, 2025, and ending June 30, 2026, the following amounts, or
10 so much thereof as is necessary, to be used for the purposes
11 designated:

12 a. For the general office of attorney general for
13 salaries, support, maintenance, and miscellaneous purposes,
14 including the prosecuting attorneys training program, matching
15 funds for federal violence against women grant programs,
16 victim assistance grants, the office of drug control policy
17 prosecuting attorney program, and odometer fraud enforcement,
18 and for not more than the following full-time equivalent
19 positions:

20 \$ 10,913,246
21 FTEs 234.00

22 As a condition of receiving the appropriation provided
23 in this lettered paragraph, the department of justice shall
24 maintain a record of the estimated time incurred representing
25 each agency or department.

26 The general office of attorney general may temporarily
27 exceed and draw more than the amount appropriated in this
28 lettered paragraph and incur a negative cash balance as long
29 as there are receivables equal to or greater than the negative
30 balances and the amount appropriated in this lettered paragraph
31 is not exceeded at the close of the fiscal year.

32 b. For victim assistance grants:

33 \$ 5,166,708

34 Of the moneys appropriated in this lettered paragraph,
35 \$150,000 is allocated to provide grants to care providers

1 providing services to victims of human trafficking. The
2 remaining moneys appropriated in this lettered paragraph
3 are allocated to provide grants to care providers providing
4 services to all other victims of violent crime.

5 The balance of the victim compensation fund established
6 in section 915.94 may be used to provide salary and support
7 of not more than 24.00 full-time equivalent positions and to
8 provide maintenance for the victim compensation functions
9 of the department of justice. In addition to the full-time
10 equivalent positions authorized pursuant to this paragraph,
11 7.00 full-time equivalent positions are authorized and shall
12 be used by the department of justice to employ one accountant
13 and four program planners. The department of justice may
14 employ the additional 7.00 full-time equivalent positions
15 authorized pursuant to this paragraph that are in excess of the
16 number of full-time equivalent positions authorized only if
17 the department of justice receives sufficient federal moneys
18 to maintain employment for the additional full-time equivalent
19 positions during the current fiscal year. The department
20 of justice shall only employ the additional 7.00 full-time
21 equivalent positions in succeeding fiscal years if sufficient
22 federal moneys are received during each of those succeeding
23 fiscal years.

24 The department of justice shall transfer at least \$150,000
25 from the victim compensation fund established in section 915.94
26 to the victim assistance grant program established in section
27 13.31.

28 Notwithstanding section 8.33, moneys appropriated in this
29 lettered paragraph that remain unencumbered or unobligated at
30 the close of the fiscal year shall not revert but shall remain
31 available for expenditure for the purposes designated until the
32 close of the succeeding fiscal year.

33 c. For legal services for persons in poverty grants as
34 provided in section 13.34:

35 \$ 2,634,601

1 d. To improve the department of justice's cybersecurity and
2 technology infrastructure:
3 \$ 202,060
4 2. a. The department of justice, in submitting budget
5 estimates for the fiscal year beginning July 1, 2026, pursuant
6 to section 8.23, shall include a report of funding from sources
7 other than amounts appropriated directly from the general fund
8 of the state to the department of justice or to the office of
9 consumer advocate. These funding sources shall include but
10 are not limited to reimbursements from other state agencies,
11 commissions, boards, or similar entities, and reimbursements
12 from special funds or internal accounts within the department
13 of justice. The department of justice shall also report actual
14 reimbursements for the fiscal year beginning July 1, 2024,
15 and actual and expected reimbursements for the fiscal year
16 beginning July 1, 2025.
17 b. The department of justice shall include the report
18 required under paragraph "a", as well as information regarding
19 any revisions occurring as a result of reimbursements actually
20 received or expected at a later date, in a report to the
21 general assembly. The department of justice shall submit the
22 report on or before January 15, 2026.
23 3. a. The department of justice shall fully reimburse
24 the costs and necessary related expenses incurred by the Iowa
25 law enforcement academy to continue to employ one additional
26 instructor position who shall provide training for human
27 trafficking-related issues throughout the state.
28 b. The department of justice shall obtain the moneys
29 necessary to reimburse the Iowa law enforcement academy to
30 employ such an instructor from unrestricted moneys from either
31 the victim compensation fund established in section 915.94 or
32 the human trafficking victim fund established in section 915.95
33 or the human trafficking enforcement fund established in 2015
34 Iowa Acts, chapter 138, section 141.
35 4. Notwithstanding sections 553.19 and 714.16C, for the

1 fiscal year beginning July 1, 2025, and ending June 30, 2026,
2 any moneys not otherwise appropriated from the antitrust fund
3 created in section 553.19 and the consumer education and
4 litigation fund created in section 714.16C are appropriated to
5 the department of justice for salaries, support, maintenance,
6 and miscellaneous purposes necessary to perform the duties
7 described in section 13.2.

8 Sec. 2. OFFICE OF CONSUMER ADVOCATE. There is appropriated
9 from the commerce revolving fund created in section 546.12 to
10 the office of consumer advocate of the department of justice
11 for the fiscal year beginning July 1, 2025, and ending June 30,
12 2026, the following amount, or so much thereof as is necessary,
13 to be used for the purposes designated:

14 For salaries, support, maintenance, and miscellaneous
15 purposes, and for not more than the following full-time
16 equivalent positions:

17	\$	3,763,937
18	FTEs	18.00

19 The office of consumer advocate shall include in its charges
20 assessed or revenues generated an amount sufficient to cover
21 the amount stated in its appropriation and any state-assessed
22 indirect costs determined by the department of administrative
23 services.

24 Sec. 3. DEPARTMENT OF CORRECTIONS — FACILITIES.

25 1. There is appropriated from the general fund of the state
26 to the department of corrections for the fiscal year beginning
27 July 1, 2025, and ending June 30, 2026, the following amounts,
28 or so much thereof as is necessary, to be used for the purposes
29 designated:

30 a. For the operation of the Fort Madison correctional
31 facility, including salaries, support, maintenance, and
32 miscellaneous purposes:

33	\$	46,561,722
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34 b. For the operation of the Anamosa correctional facility,
35 including salaries, support, maintenance, and miscellaneous

1 purposes:
 2 \$ 39,358,974
 3 c. For the operation of the Oakdale correctional facility,
 4 including salaries, support, maintenance, and miscellaneous
 5 purposes:
 6 \$ 58,954,020
 7 d. For the Oakdale correctional facility for
 8 department-wide institutional pharmaceuticals and miscellaneous
 9 purposes:
 10 \$ 10,175,417
 11 e. For the operation of the Newton correctional facility,
 12 including salaries, support, maintenance, and miscellaneous
 13 purposes:
 14 \$ 32,279,092
 15 f. For the operation of the Mount Pleasant correctional
 16 facility, including salaries, support, maintenance, and
 17 miscellaneous purposes:
 18 \$ 30,356,297
 19 g. For the operation of the Rockwell City correctional
 20 facility, including salaries, support, maintenance, and
 21 miscellaneous purposes:
 22 \$ 11,721,579
 23 h. For the operation of the Clarinda correctional facility,
 24 including salaries, support, maintenance, and miscellaneous
 25 purposes:
 26 \$ 29,252,380
 27 Moneys received by the department of corrections as
 28 reimbursement for services provided to the Clarinda youth
 29 corporation are appropriated to the department and shall be
 30 used for the purpose of operating the Clarinda correctional
 31 facility.
 32 i. For the operation of the Mitchellville correctional
 33 facility, including salaries, support, maintenance, and
 34 miscellaneous purposes:
 35 \$ 26,082,539

1 j. For the operation of the Fort Dodge correctional
 2 facility, including salaries, support, maintenance, and
 3 miscellaneous purposes:
 4 \$ 34,085,251
 5 k. For reimbursement of counties for temporary confinement
 6 of prisoners, as provided in sections 901.7, 904.908, and
 7 906.17, and for offenders confined pursuant to section 904.513:
 8 \$ 1,345,319
 9 1. For federal prison reimbursement, reimbursements for
 10 out-of-state placements, and miscellaneous contracts:
 11 \$ 234,411
 12 2. The department of corrections shall use moneys
 13 appropriated in subsection 1 to continue to contract for the
 14 services of a Muslim imam and a Native American spiritual
 15 leader.
 16 Sec. 4. DEPARTMENT OF CORRECTIONS — ADMINISTRATION.
 17 There is appropriated from the general fund of the state to the
 18 department of corrections for the fiscal year beginning July
 19 1, 2025, and ending June 30, 2026, the following amounts, or
 20 so much thereof as is necessary, to be used for the purposes
 21 designated:
 22 1. For general administration, including salaries and the
 23 adjustment of salaries throughout the department, support,
 24 maintenance, employment of an education director to administer
 25 a centralized education program for the correctional system,
 26 and miscellaneous purposes:
 27 \$ 8,165,695
 28 a. It is the intent of the general assembly that each
 29 lease negotiated by the department of corrections with a
 30 private corporation for the purpose of providing private
 31 industry employment of inmates in a correctional institution
 32 shall prohibit the private corporation from utilizing inmate
 33 labor for partisan political purposes for any person seeking
 34 election to public office in this state and that a violation
 35 of this requirement shall result in a termination of the lease

1 agreement.

2 b. It is the intent of the general assembly that as a
3 condition of receiving the appropriation provided in this
4 subsection the department of corrections shall not enter into
5 a lease or contractual agreement pursuant to section 904.809
6 with a private corporation for the use of building space for
7 the purpose of providing inmate employment without providing
8 that the terms of the lease or contract establish safeguards to
9 restrict, to the greatest extent feasible, access by inmates
10 working for the private corporation to personal identifying
11 information of citizens.

12 2. For educational programs for inmates at state penal
13 institutions:

14 \$ 3,108,109

15 a. To maximize the funding for educational programs,
16 the department shall establish guidelines and procedures to
17 prioritize the availability of educational and vocational
18 training for inmates based upon the goal of facilitating an
19 inmate's successful release from the correctional institution.

20 b. The director of the department of corrections may
21 transfer moneys from Iowa prison industries and the canteen
22 operating funds established pursuant to section 904.310, for
23 use in educational programs for inmates.

24 c. Notwithstanding section 8.33, moneys appropriated in
25 this subsection that remain unencumbered or unobligated at the
26 close of the fiscal year shall not revert but shall remain
27 available for expenditure for the purposes designated in this
28 subsection until the close of the succeeding fiscal year.

29 3. For the development and operation of the Iowa corrections
30 offender network (ICON) data system:

31 \$ 2,000,000

32 4. For offender mental health and substance abuse
33 treatment:

34 \$ 28,065

35 5. For department-wide duties, including operations, costs,

1 and miscellaneous purposes:
2 \$ 5,905,778
3 Sec. 5. JUDICIAL DISTRICT DEPARTMENTS OF CORRECTIONAL
4 SERVICES.
5 1. There is appropriated from the general fund of the state
6 to the department of corrections for the fiscal year beginning
7 July 1, 2025, and ending June 30, 2026, for salaries, support,
8 maintenance, and miscellaneous purposes, the following amounts,
9 or so much thereof as is necessary, to be used for the purposes
10 designated:
11 a. For the first judicial district department of
12 correctional services:
13 \$ 17,301,981
14 It is the intent of the general assembly that the first
15 judicial district department of correctional services maintains
16 the drug courts operated by the district department.
17 b. For the second judicial district department of
18 correctional services:
19 \$ 13,945,725
20 It is the intent of the general assembly that the second
21 judicial district department of correctional services maintains
22 two drug courts to be operated by the district department.
23 c. For the third judicial district department of
24 correctional services:
25 \$ 8,915,376
26 d. For the fourth judicial district department of
27 correctional services:
28 \$ 6,465,898
29 e. For the fifth judicial district department of
30 correctional services, including funding for electronic
31 monitoring devices for use on a statewide basis:
32 \$ 25,006,813
33 It is the intent of the general assembly that the fifth
34 judicial district department of correctional services maintains
35 the drug court operated by the district department.

1 f. For the sixth judicial district department of
2 correctional services:
3 \$ 17,406,811

4 It is the intent of the general assembly that the sixth
5 judicial district department of correctional services maintains
6 the drug court operated by the district department.

7 g. For the seventh judicial district department of
8 correctional services:
9 \$ 11,003,457

10 It is the intent of the general assembly that the seventh
11 judicial district department of correctional services maintains
12 the drug court operated by the district department.

13 h. For the eighth judicial district department of
14 correctional services:
15 \$ 10,241,148

16 2. Each judicial district department of correctional
17 services, within the moneys available, shall continue programs
18 and plans established within that district to provide for
19 intensive supervision, sex offender treatment, diversion of
20 low-risk offenders to the least restrictive sanction available,
21 job development, and expanded use of intermediate criminal
22 sanctions.

23 3. Each judicial district department of correctional
24 services shall provide alternatives to prison consistent with
25 chapter 901B. The alternatives to prison shall ensure public
26 safety while providing maximum rehabilitation to the offender.
27 A judicial district department of correctional services may
28 also establish a day program.

29 4. The office of drug control policy of the department
30 of public safety shall consider federal grants made to the
31 department of corrections for the benefit of each of the eight
32 judicial district departments of correctional services as local
33 government grants, as defined pursuant to federal regulations.

34 5. The department of corrections shall continue to contract
35 with a judicial district department of correctional services to

1 provide for the rental of electronic monitoring equipment which
2 shall be available statewide.

3 6. The public safety assessment shall not be utilized in
4 pretrial hearings when determining whether to detain or release
5 a defendant before trial until such time the use of the public
6 safety assessment has been specifically authorized by the
7 general assembly.

8 Sec. 6. DEPARTMENT OF CORRECTIONS — REALLOCATION OF
9 APPROPRIATIONS. Notwithstanding section 8.39, within
10 the moneys appropriated in this Act to the department of
11 corrections, the department may reallocate the moneys
12 appropriated and allocated as necessary to best fulfill the
13 needs of the correctional institutions, administration of
14 the department, and the judicial district departments of
15 correctional services. However, in addition to complying with
16 the requirements of section 904.116 and providing notice to
17 the legislative services agency, the department of corrections
18 shall also provide notice to the department of management,
19 prior to the effective date of the revision or reallocation of
20 an appropriation made pursuant to this section. The department
21 of corrections shall not reallocate an appropriation or
22 allocation for the purpose of eliminating any program.

23 Sec. 7. INTENT — REPORTS.

24 1. The department of corrections, in cooperation with
25 townships, the Iowa cemetery associations, and other nonprofit
26 or governmental entities, may use inmate labor during the
27 fiscal year beginning July 1, 2025, to restore or preserve
28 rural cemeteries and historical landmarks. The department, in
29 cooperation with the counties, may also use inmate labor to
30 clean up roads, major water sources, and other water sources
31 around the state.

32 2. By January 15, 2026, the department shall provide an
33 annual status report regarding private-sector employment to
34 the general assembly. The report shall include the number
35 of offenders employed in the private sector, the combined

1 number of hours worked by the offenders, the total amount of
2 allowances, and the distribution of allowances pursuant to
3 section 904.702, including any moneys deposited in the general
4 fund of the state.

5 Sec. 8. ELECTRONIC MONITORING REPORT. The department of
6 corrections shall submit a report on electronic monitoring
7 to the general assembly by January 15, 2026. The report
8 shall specifically address the number of persons being
9 electronically monitored and break down the number of persons
10 being electronically monitored by offense committed. The
11 report shall also include a comparison of any data from the
12 prior fiscal year with the current fiscal year.

13 Sec. 9. STATE AGENCY PURCHASES FROM PRISON INDUSTRIES.

14 1. As used in this section, unless the context otherwise
15 requires, "state agency" means the government of the state
16 of Iowa, including but not limited to all executive branch
17 departments, agencies, boards, bureaus, and commissions, the
18 judicial branch, the general assembly and all legislative
19 agencies, institutions within the purview of the state board of
20 regents, and any corporation whose primary function is to act
21 as an instrumentality of the state.

22 2. State agencies are encouraged to purchase products from
23 Iowa state industries, as defined in section 904.802, when
24 purchases are required and the products are available from
25 Iowa state industries. State agencies shall obtain bids from
26 Iowa state industries for purchases of office furniture during
27 the fiscal year beginning July 1, 2025, exceeding \$5,000 or
28 in accordance with applicable administrative rules related to
29 purchases for the agency.

30 Sec. 10. IOWA LAW ENFORCEMENT ACADEMY.

31 1. There is appropriated from the general fund of the
32 state to the Iowa law enforcement academy for the fiscal year
33 beginning July 1, 2025, and ending June 30, 2026, the following
34 amount, or so much thereof as is necessary, to be used for the
35 purposes designated:

1 a. For salaries, support, maintenance, and miscellaneous
2 purposes, including jailer training and technical assistance,
3 and for not more than the following full-time equivalent
4 positions:

5	\$	2,964,407
6	FTEs	31.00

7 b. The Iowa law enforcement academy may temporarily exceed
8 and draw more than the amount appropriated in this subsection
9 and incur a negative cash balance as long as there are
10 receivables equal to or greater than the negative balance and
11 the amount appropriated in this subsection is not exceeded at
12 the close of the fiscal year.

13 2. The Iowa law enforcement academy may select at least
14 five automobiles of the department of public safety, division
15 of state patrol, prior to turning over the automobiles to
16 the department of administrative services to be disposed
17 of by public auction, and the Iowa law enforcement academy
18 may exchange any automobile owned by the academy for each
19 automobile selected if the selected automobile is used in
20 training law enforcement officers at the academy. However, any
21 automobile exchanged by the academy shall be substituted for
22 the selected vehicle of the department of public safety and
23 sold by public auction with the receipts being deposited in the
24 depreciation fund maintained pursuant to section 8A.365 to the
25 credit of the department of public safety, division of state
26 patrol.

27 3. The Iowa law enforcement academy shall provide training
28 for domestic abuse and human trafficking-related issues
29 throughout the state. The training shall be offered at no
30 cost to the attendees and the training shall not replace any
31 existing domestic abuse or human trafficking training offered
32 by the academy.

33 Sec. 11. STATE PUBLIC DEFENDER.

34 1. There is appropriated from the general fund of the state
35 to the office of the state public defender of the department

1 of inspections, appeals, and licensing for the fiscal year
2 beginning July 1, 2025, and ending June 30, 2026, the following
3 amounts, or so much thereof as is necessary, to be used for the
4 purposes designated:

5 a. For salaries, support, maintenance, and miscellaneous
6 purposes, and for not more than the following full-time
7 equivalent positions:

8 \$ 35,527,894
9 FTEs 266.00

10 Of the moneys appropriated in this lettered paragraph,
11 \$100,000 is allocated to the college student aid commission
12 within the department of education for the administration of
13 the rural attorney recruitment assistance program established
14 in section 256.231, if enacted by 2025 Iowa Acts, House File
15 1001 or Senate File 250, or successor legislation.

16 b. For payments on behalf of eligible adults and juveniles
17 from the indigent defense fund, in accordance with section
18 815.11:

19 \$ 42,726,374

20 2. Moneys received by the office of the state public
21 defender pursuant to Tit. IV-E of the federal Social Security
22 Act remaining unencumbered and unobligated at the end of the
23 fiscal year shall not revert but shall be transferred to the
24 Tit. IV-E juvenile justice improvement fund created in 2022
25 Iowa Acts, chapter 1146, section 11, subsection 3, to remain
26 available for expenditure by the office of the state public
27 defender in succeeding fiscal years for the purposes allowed by
28 Tit. IV-E of the federal Social Security Act.

29 Sec. 12. BOARD OF PAROLE. There is appropriated from the
30 general fund of the state to the board of parole for the fiscal
31 year beginning July 1, 2025, and ending June 30, 2026, the
32 following amount, or so much thereof as is necessary, to be
33 used for the purposes designated:

34 For salaries, support, maintenance, and miscellaneous
35 purposes, and for not more than the following full-time

1 equivalent positions:

2 \$ 1,545,114

3 FTEs 11.00

4 Sec. 13. DEPARTMENT OF PUBLIC DEFENSE.

5 1. There is appropriated from the general fund of the
6 state to the department of public defense, for the fiscal year
7 beginning July 1, 2025, and ending June 30, 2026, the following
8 amount, or so much thereof as is necessary, to be used for the
9 purposes designated:

10 For salaries, support, maintenance, and miscellaneous
11 purposes, and for not more than the following full-time
12 equivalent positions:

13 \$ 7,267,855

14 FTEs 248.00

15 2. The department of public defense may temporarily exceed
16 and draw more than the amount appropriated in this section and
17 incur a negative cash balance as long as there are receivables
18 of federal funds equal to or greater than the negative balance
19 and the amount appropriated in this section is not exceeded at
20 the close of the fiscal year.

21 Sec. 14. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY
22 MANAGEMENT.

23 1. There is appropriated from the general fund of the state
24 to the department of homeland security and emergency management
25 for the fiscal year beginning July 1, 2025, and ending June 30,
26 2026, the following amount, or so much thereof as is necessary,
27 to be used for the purposes designated:

28 For salaries, support, maintenance, and miscellaneous
29 purposes, and for not more than the following full-time
30 equivalent positions:

31 \$ 2,446,138

32 FTEs 25.44

33 2. The department of homeland security and emergency
34 management may temporarily exceed and draw more than the amount
35 appropriated in this section and incur a negative cash balance

1 as long as there are receivables of federal funds equal to or
2 greater than the negative balance and the amount appropriated
3 in this section is not exceeded at the close of the fiscal
4 year.

5 Sec. 15. DEPARTMENT OF PUBLIC SAFETY. There is appropriated
6 from the general fund of the state to the department of public
7 safety for the fiscal year beginning July 1, 2025, and ending
8 June 30, 2026, the following amounts, or so much thereof as is
9 necessary, to be used for the purposes designated:

10 1. For administrative functions, including salaries and the
11 adjustment of salaries throughout the department, the criminal
12 justice information system, and for not more than the following
13 full-time equivalent positions:

14 \$ 7,095,906
15 FTEs 48.00

16 2. For the division of criminal investigation, including
17 the state's contribution to the peace officers' retirement,
18 accident, and disability system provided in chapter 97A in the
19 amount of the state's normal contribution rate, as defined in
20 section 97A.8, multiplied by the salaries for which the moneys
21 are appropriated, to meet federal fund matching requirements,
22 and for not more than the following full-time equivalent
23 positions:

24 \$ 22,805,958
25 FTEs 184.00

26 3. For the criminalistics laboratory fund created in
27 section 691.9:

28 \$ 650,000

29 Notwithstanding section 8.33, moneys appropriated in this
30 subsection that remain unencumbered or unobligated at the close
31 of the fiscal year shall not revert but shall remain available
32 for expenditure for the purposes designated until the close of
33 the succeeding fiscal year.

34 4. a. For the division of narcotics enforcement, including
35 the state's contribution to the peace officers' retirement,

1 accident, and disability system provided in chapter 97A in the
2 amount of the state's normal contribution rate, as defined in
3 section 97A.8, multiplied by the salaries for which the moneys
4 are appropriated, to meet federal fund matching requirements,
5 and for not more than the following full-time equivalent
6 positions:

7 \$ 10,265,032
8 FTEs 71.00

9 The division of narcotics enforcement is authorized an
10 additional 1.00 full-time equivalent position pursuant to
11 this lettered paragraph that is in excess of the number of
12 full-time equivalent positions authorized for the previous
13 fiscal year only if the division of narcotics enforcement
14 receives sufficient federal moneys to maintain employment
15 for the additional full-time equivalent position during the
16 current fiscal year. The division of narcotics enforcement
17 shall only employ the additional full-time equivalent position
18 in succeeding fiscal years if sufficient federal moneys are
19 received during each of those succeeding fiscal years.

20 b. For the division of narcotics enforcement for undercover
21 purchases:

22 \$ 209,042

23 5. For the division of state fire marshal, for fire
24 protection services as provided through the state fire service
25 and emergency response council as created in the department,
26 and for the state's contribution to the peace officers'
27 retirement, accident, and disability system provided in chapter
28 97A in the amount of the state's normal contribution rate,
29 as defined in section 97A.8, multiplied by the salaries for
30 which the moneys are appropriated, and for not more than the
31 following full-time equivalent positions:

32 \$ 3,554,935
33 FTEs 21.00

34 6. For the division of state patrol, for salaries, support,
35 maintenance, workers' compensation costs, and miscellaneous

1 purposes, including the state's contribution to the peace
2 officers' retirement, accident, and disability system provided
3 in chapter 97A in the amount of the state's normal contribution
4 rate, as defined in section 97A.8, multiplied by the salaries
5 for which the moneys are appropriated, and for not more than
6 the following full-time equivalent positions:

7 \$ 92,232,969
8 FTEs 613.00

9 It is the intent of the general assembly that members of the
10 state patrol be assigned to patrol the highways and roads in
11 lieu of assignments for inspecting school buses for the school
12 districts.

13 7. For deposit in the sick leave benefits fund established
14 in section 80.42 for all departmental employees eligible to
15 receive benefits for accrued sick leave under the collective
16 bargaining agreement:

17 \$ 279,517

18 8. For costs associated with the training and equipment
19 needs of volunteer fire fighters:

20 \$ 1,075,520

21 Notwithstanding section 8.33, moneys appropriated in this
22 subsection that remain unencumbered or unobligated at the close
23 of the fiscal year shall not revert but shall remain available
24 for expenditure for the purposes designated in this subsection
25 until the close of the succeeding fiscal year.

26 9. For the public safety interoperable and broadband
27 communications fund established in section 80.44:

28 \$ 115,661

29 10. For the office to combat human trafficking established
30 pursuant to section 80.45, including salaries, support,
31 maintenance, and miscellaneous purposes:

32 \$ 200,742

33 11. For department-wide duties, including operations,
34 costs, and miscellaneous purposes:

35 \$ 3,058,667

1 there is appropriated from the gaming enforcement revolving
2 fund to the department of public safety for the fiscal year
3 beginning July 1, 2025, and ending June 30, 2026, an additional
4 amount of not more than \$300,000 to be used for full-time
5 equivalent positions.

6 3. The department of public safety, with the approval of the
7 department of management, may employ no more than three special
8 agents for each additional riverboat or gambling structure
9 regulated after July 1, 2026, and three special agents for
10 each racing facility which becomes operational during the
11 fiscal year which begins July 1, 2026. Positions authorized
12 in this subsection are in addition to the full-time equivalent
13 positions otherwise authorized in this section.

14 Sec. 17. DEPARTMENT OF HOMELAND SECURITY AND EMERGENCY
15 MANAGEMENT. There is appropriated from the 911 emergency
16 communications fund created in section 34A.7A to the department
17 of homeland security and emergency management for the fiscal
18 year beginning July 1, 2025, and ending June 30, 2026, the
19 following amount, or so much thereof as is necessary, to be
20 used for the purposes designated:

21 For implementation, support, and maintenance of the
22 functions of the administrator and program manager under
23 chapter 34A and to employ the auditor of the state to perform
24 an annual audit of the 911 emergency communications fund:
25 \$ 300,000

26 Sec. 18. CONSUMER EDUCATION AND LITIGATION — FARM
27 MEDIATION AND PROSECUTIONS, APPEALS, AND CLAIMS.

28 Notwithstanding [section 714.16C](#), there is appropriated from the
29 consumer education and litigation fund to the department of
30 justice for the fiscal year beginning July 1, 2025, and ending
31 June 30, 2026, the following amounts, or so much thereof as is
32 necessary, to be used for the purposes designated:

33 1. For farm mediation services as specified in section
34 13.13, subsection 2:
35 \$ 300,000

1 2. For salaries, support, maintenance, and miscellaneous
2 purposes for criminal prosecutions, criminal appeals, and
3 performing duties pursuant to [chapter 669](#):
4 \$ 2,000,000

5 DIVISION II

6 INDIGENT DEFENSE AND REPRESENTATION

7 Sec. 19. Section 815.7, subsection 9, Code 2025, is amended
8 to read as follows:

9 9. For appointments made on or after July 1, 2024, through
10 June 30, 2025, the reasonable compensation shall be calculated
11 on the basis of eighty-six dollars per hour for class "A"
12 felonies, eighty-one dollars per hour for class "B" felonies,
13 and seventy-six dollars per hour for all other cases.

14 Sec. 20. Section 815.7, Code 2025, is amended by adding the
15 following new subsection:

16 NEW SUBSECTION. 9A. For appointments made on or after July
17 1, 2025, the reasonable compensation shall be calculated on the
18 basis of eighty-eight dollars per hour for class "A" felonies,
19 eighty-three dollars per hour for class "B" felonies, and
20 seventy-eight dollars per hour for all other cases.

21 DIVISION III

22 ATTORNEY GENERAL — CONSUMER EDUCATION AND LITIGATION FUND

23 Sec. 21. Section 714.16C, subsection 2, Code 2025, is
24 amended to read as follows:

25 2. For each fiscal year, not more than one million ~~one~~
26 ~~hundred twenty-five~~ eight hundred seventy-five thousand dollars
27 is appropriated from the fund to the department of justice to
28 be used for public education relating to consumer fraud and for
29 enforcement of [section 714.16](#) and federal consumer laws, and
30 not more than ~~seventy-five~~ one hundred twenty-five thousand
31 dollars is appropriated from the fund to the department of
32 justice to be used for investigation, prosecution, and consumer
33 education relating to consumer and criminal fraud committed
34 against older Iowans.

35 DIVISION IV

1 DEPARTMENT OF CORRECTIONS — CAPITAL REINVESTMENT FUND

2 Sec. 22. Section 904.317, subsection 1, Code 2025, is
3 amended to read as follows:

4 1. The director, subject to the approval of the board, may
5 secure options to purchase real estate and acquire and sell
6 real estate for the proper uses of the institutions. Real
7 estate shall be acquired and sold upon terms and conditions the
8 director recommends subject to the approval of the board. Upon
9 sale of the real estate, the proceeds shall be deposited in a
10 corrections capital reinvestment fund, which is established in
11 the state treasury under the purview of the department. There
12 is appropriated from the fund to the department the proceeds,
13 which may be used to purchase other real estate, ~~or~~ for capital
14 improvements upon property under the director's supervision, or
15 for upgrades to the Iowa corrections offender network system.
16 Notwithstanding [section 8.33](#), moneys in the fund that remain
17 unencumbered or unobligated at the close of a fiscal year shall
18 not revert but shall remain available for expenditure for the
19 purposes designated. Notwithstanding section 12C.7, subsection
20 2, interest or earnings on moneys in the fund shall be credited
21 to the fund.

22 DIVISION V

23 DEPARTMENT OF CORRECTIONS — FEDERAL RECEIPTS FUND

24 Sec. 23. NEW SECTION. 904.118 **Federal receipts fund.**

25 1. A federal receipts fund is established in the state
26 treasury under the control of the department. The fund shall
27 consist of all of the following:

28 a. All federal moneys received by the department, including
29 but not limited to moneys received for federally contracted
30 services, but excluding moneys required to be deposited in the
31 special fund pursuant to section 8.41.

32 b. Any other moneys appropriated to or deposited in the
33 fund.

34 2. Moneys in the fund are appropriated to the department
35 for purposes of the operations of the department and any other

1 use authorized or required under the federal law or contract
2 pursuant to which the moneys were paid. This subsection
3 does not apply to federal moneys the expenditure of which is
4 otherwise provided for by law, including but not limited to
5 federal moneys described in section 904.301B, subsection 14.

6 3. Notwithstanding section 8.33, moneys in the fund
7 that remain unencumbered or unobligated at the close of a
8 fiscal year shall not revert but shall remain available for
9 expenditure for the purposes designated. Notwithstanding
10 section 12C.7, subsection 2, interest or earnings on moneys in
11 the fund shall be credited to the fund.

12 Sec. 24. EFFECTIVE DATE. This division of this Act, being
13 deemed of immediate importance, takes effect upon enactment.

14 Sec. 25. RETROACTIVE APPLICABILITY. This division of this
15 Act applies retroactively to the fiscal year beginning July 1,
16 2023.>

17 2. Title page, line 2, after <system> by inserting <,
18 providing for properly related matters including indigent
19 defense and representation, the corrections capital
20 reinvestment fund, and a corrections federal receipts fund,
21 and including effective date and retroactive applicability
22 provisions>

JULIAN GARRETT